

DEEP DIVE — Participant Release & Life-Story Rights · DRAFT TERMS v1

(!) NOT FOR SIGNING. This is the brief + draft terms for a Croatian media lawyer, who converts it into a binding HR/EN bilingual agreement. Target: signed at Lastovo (20 Jul–9 Aug).

*Sign with: Tomislav Kovačić as producer, **with assignment right to the production d.o.o. upon its registration** (company in founding).*

Who signs what

- **The Four** (Petar Klovar, Vitomir Maričić, Sanda Delija, Zsófia Törőcsik): full agreement below.
- **Supporting participants** (family, Borna if featured, coaches, camp students, safety team): the simplified one-pager (Annex C).
- **Crew** (Toni, Kristijan, others): separate work-for-hire deal memos — all footage/IP to producer; re-paper Krk + Sicily work onto the d.o.o. once founded.

Draft terms — the Four

1. **Grant of rights.** Appearance, interview, likeness, voice, name, and biographical/life-story elements; plus personal archive materials the participant chooses to provide (family photos/video) under a per-item schedule (Annex B). For: the feature documentary, the companion series (3 eps), and their promotion (trailers, stills, poster, socials, EPK).
2. **Scope.** All media now known or later devised, worldwide, for the full term of protection — required for any streamer/broadcaster sale. (Lawyer: structure as contractual licence of personality rights + archive licence, not mere GDPR consent, to limit revocability; HR pravo osobnosti + GDPR interplay is the core drafting job.)
3. **Editorial control.** Producer/director holds final cut — **except the "2023 Chapter"** (defined: all scenes substantially depicting the Vertical Blue 2023 events, the search, the CMAS proceedings and their direct aftermath). For that chapter only, each of the Four has: (a) the right to view the chapter cut before any third party outside the production sees it; (b) an approval right over that chapter's inclusion of their own contributions. This mirrors the promises in the 2023 Working Paper — and is deliberately **chapter-limited** so E&O and streamer delivery remain possible.
4. **The blackout clause (Petar).** Footage of the Sicily blackout and recovery may be used only in context that includes/reflects his own account (the post-event interview). No isolated use in marketing without his written OK. (He's already given the interview — this papers the trust.)
5. **Health & science material.** Physiological/medical imagery and data (Rijeka lab block: ultrasound, EEG, etc.) = GDPR special-category data › separate explicit consent annex (Annex D), per session, with the University's own ethics paperwork alongside.
6. **Compensation.** [TOMO — decide before Lastovo. Options: (a) symbolic fee now + defined % net-profit participation shared by the Four; (b) deferred fee payable from first commercial revenue; (c) fee only. Bible principle "they're partners, not subjects" › (a) recommended.]

7. **No obligation** to produce, complete, or release the film; no obligation to use any particular material.
8. **Truth & third-party rights.** Participant warrants their statements are true to their knowledge and that provided archive is theirs to give (or flags whose it is).
9. **Safety.** Filming never directs or overrides diving activity; the participant's sporting decisions are their own; producer's liability limited to the filming activity itself. (Lawyer: coordinate with production insurance wording.)
10. **Exclusivity (soft).** During production, participant won't grant a competing feature-documentary crew substantially similar access (news/social/short-form excluded — their careers continue normally).
11. **Withdrawal.** Participant may stop future filming at any time; already-recorded material remains licensed (subject to clauses 3–5).
12. **Credit.** [e.g., "with Petar Klovar, Vitomir Maričić, Sanda Delija, Zsófia Törőcsik" main titles; consult them on form.]
13. **Law & forum.** Croatian law; court [Rijeka]. Binding language HR; EN courtesy translation for Zsófia (or bilingual both-binding — lawyer's call).

Annexes

- **A** — Definition of "2023 Chapter" (scene-type list, so approval scope is objective).
- **B** — Archive materials schedule (item, source, owner, permitted use).
- **C** — Supporting-participant one-pager: appearance + likeness, all media, worldwide, perpetual, no approval rights, GDPR notice, signature. Keep it to one page — camp students and family sign this between dives.
- **D** — Special-category (health) data consent, per lab session.

Lawyer brief (send with this file)

Find: HR media/entertainment lawyer with doc/streamer delivery experience. Ask them to: (1) convert to bilingual agreement + annexes; (2) solve the GDPR-revocability vs contract-licence structure; (3) sanity-check clause 3 against E&O insurability; (4) advise on the 2023 archive (secretly-filmed search video — privacy/copyright/defamation exposure and the truth defence given negative WADA tests + ITA no-violation + Škerbić et al. 2025); (5) fixed quote. Budget line exists in MASTER-PLAN §4.